

HOUSE No. 526**The Commonwealth of Massachusetts**

PRESENTED BY:

Daniel Cahill

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act modernizing school construction.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Daniel Cahill</i>	<i>10th Essex</i>	<i>1/17/2025</i>
<i>Sean Reid</i>	<i>11th Essex</i>	<i>1/17/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>6/26/2025</i>
<i>David Henry Argosky LeBoeuf</i>	<i>17th Worcester</i>	<i>4/7/2025</i>
<i>Samantha Montaño</i>	<i>15th Suffolk</i>	<i>5/1/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>5/5/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>6/25/2025</i>
<i>John Francis Moran</i>	<i>9th Suffolk</i>	<i>6/25/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>6/25/2025</i>
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>7/7/2025</i>
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>7/7/2025</i>
<i>Lisa Field</i>	<i>3rd Bristol</i>	<i>9/5/2025</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>1/28/2026</i>
<i>Tram T. Nguyen</i>	<i>18th Essex</i>	<i>2/11/2026</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>4/7/2026</i>

HOUSE No. 526

By Representative Cahill of Lynn, a petition (accompanied by bill, House, No. 526) of Daniel Cahill and Sean Reid relative to school construction. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act modernizing school construction.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 35BB of chapter 10 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by striking out, in lines 7 and 8, the figure “1” and inserting
3 in place thereof, in each instance, the following figure:- 2.

4 SECTION 2. Chapter 70 of the General Laws is hereby amended by adding the following
5 section:-

6 Section 18. A school district with a disproportionate share of school buildings: (i) in need
7 of major renovation or potential replacement; (ii) with environments that are not conducive to
8 teaching and learning; (iii) in need of major repairs; or (iv) in need of replacement, as determined
9 by the Massachusetts School Building Authority, may, for a period of time until the debt service
10 obligations for school construction projects in said schools are paid, use not more than 1 percent
11 of the total amount of state school aid allocated to said school district under this chapter for costs
12 associated with the renovation or replacement of said school buildings.

SECTION 3. Section 2 of chapter 70B of the General Laws, as appearing in the 2020 Official Edition, is hereby amended by striking out, in lines 29 and 30, the figure “1” and inserting in place thereof, in each instance, the following figure:- 2.

SECTION 4. Subsection (b) of section 9 of said chapter 70B, as so appearing, is hereby amended by striking out the words “may also take into account” and inserting in place thereof the following words:- shall provide flexibility for.

SECTION 5. Said section 9 of said chapter 70B, as so appearing, is hereby amended by inserting after the word “section”, in line 49, the following words:-; provided, however, that the reimbursement dollar amount per square foot shall be not less than the average of the actual construction cost per square foot of all approved school projects from the previous 3 fiscal years.

SECTION 6. Section 10 of said chapter 70B, as so appearing, is hereby amended by striking out, in line 3, the figure “80” and inserting in place thereof the following figure:- 100.

SECTION 7. Said section 10 of said chapter 70B, as so appearing, is hereby further amended by striking out, in line 8, the words “Incentive Percentage (C)” and inserting in place thereof the following words:- Incentive Percentage (C) + School Integration Percentage (D).

SECTION 8. Clause (3) of paragraph (B) of subsection (a) of said section 10 of said chapter 70B, as so appearing, is hereby amended by striking out the figures in the chart titled “Poverty” and inserting in place thereof the following figures:-

0-99%0.00

100-102%1.42

103-105%2.83

34	106-108%4.25
35	109-111%5.67
36	112-114%7.08
37	115-117%8.50
38	118-120%9.92
39	121-123%11.33
40	124-126%12.75
41	127-129%14.17
42	130-132%15.58
43	133-135%17.00
44	136-138%18.42
45	139-141%19.83
46	142-144%21.25
47	145-147%22.67
48	148-150%24.08
49	151-153%25.50
50	154-156%26.92

51	157-159%28.33
52	160-162%29.75
53	163-165%31.17
54	166-168%32.58
55	169-171%34.00
56	172-174%35.42
57	175-177%36.83
58	178-180%38.25
59	181-183%39.67
60	184-186%41.08
61	187-189%42.50
62	190-192%43.92
63	193-195%45.33
64	196-198%46.75
65	199%+48.17

66 SECTION 9. Said subsection (a) of said section 10 of said chapter 70B, as so appearing,
67 is hereby further amended by adding the following paragraph:-

(D) School integration percentage points shall be awarded by the authority. New project applications that present clear and convincing evidence, as determined by the authority, that the proposed school building project is likely to significantly improve inter-district or intra-district racial integration of students shall receive 10 percentage points.

SECTION 10. For the purposes of developing program and cost standards pursuant to subsection (b) of section 9 of chapter 70B of the General Laws, the Massachusetts School Building Authority shall not find a proposed project for the Accelerated Repair Program to be ineligible on the basis of estimated total budget unless the estimated total budget is less than \$100,000.

SECTION 11. For the purposes of promulgating net school spending regulations pursuant to section (2) of chapter 70 of the General Laws, the department of elementary and secondary education shall allow extraordinary maintenance projects to qualify as net school spending up to a total cost per project per school of \$500,000.